

****31.08.2023****

****A new fine - individual operator****

The National Authority for the Supervision of Personal Data Processing completed an investigation in June 2023 concerning an individual operator and found violations of the provisions of Article 5, Article 6 paragraph (1) letter a), and Article 9 paragraph (2) letter a) of Regulation (EU) 2016/679.

The operator was sanctioned with a fine of 9919.2 lei, equivalent to 2000 euros.

During the investigation conducted following a complaint, it was found that the sanctioned operator (a doctor) filmed a patient of the hospital where he works with his personal phone, without her consent, and subsequently posted the video on his Facebook page. The audio-video recording led to the disclosure of the patient's personal data, including image, voice, name, surname, and health status. The operator deleted the recording from his Facebook page on the same day, but not before it was viewed by a very large number of people and was shared and disseminated on various websites and media channels.

We emphasize that Article 20 of Law no. 46/2003 regarding patient rights, with subsequent amendments and completions, states: "The patient cannot be photographed or filmed in a medical unit without his consent, except in cases where the images are necessary for diagnosis or treatment and to avoid suspicion of medical malpractice."

In addition to the fine, the National Authority for the Supervision of Personal Data Processing also applied a corrective measure, ordering the operator to ensure compliance with GDPR in the processing of personal data operations, so that the personal data of patients is processed in strict accordance with the legal provisions regarding the provision of medical services and the protection of personal data, by avoiding the illegal/excessive/unauthorized collection and/or disclosure of their personal data.

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****N.A.S.P.D.C.P.****